[3]Article 352 defines the term 'Cabinet' as the council consisting of the Prime Minister and other ministers of the Cabinet rank.

[4]*Minerva Mills* vs. *Union of India* (1980).

[5]The term of the Fifth Lok Sabha which was to expire on 18 March, 1976 was extended by one year upto 18 March, 1977 by the House of the People (Extension of Duration) Act, 1976. It was extend for a further period of one year upto 18 March, 1978 by the House of the People (Extension of Duration) Amendment Act, 1976. However, the House was dissolved on 18 January, 1977, after having been in existence for a period of five years, ten months and six days.

[6]The 42nd Amendment Act of 1976 had raised the period of six months to one year. Thus, once approved by both the Houses of Parliament, the proclamation of President's Rule could continue for one year. But, the 44th Amendment Act of 1978 again reduced the period to six months.

[7]The President's Rule imposed in May, 1987 in Punjab was allowed to continue for five years under the 68th Amendment Act of 1991.

[8]In case of dissolution, fresh elections are held for constituting a new legislative assembly in the state.

[9]Those nine States include Rajasthan, Uttar Pradesh, Madhya Pradesh, Punjab, Bihar, Himachal Pradesh, Orissa, West Bengal and Haryana.

[10]Those nine states include Uttar Pradesh, Bihar, Rajasthan, Madhya Pradesh, Punjab, Orissa, Gujarat, Maharashtra and Tamil Nadu.

[11]*S.R. Bommai* vs. *Union of India* (1994).

[12]*Constituent Assembly Debates*, Volume IX, pp. 133 and 177.

[13]*Report of the Commission on Centre–State Relations,* Part I, pp. 165–180 (1988).

[14]*Constituent Assembly Debates,* Volume X, pp. 361–372.

[15]Quoted from M.V. Pylee, *India's Constitution*, S Chand, Fifth Edition, 1994, p. 280.

[16]*Constituent Assembly Debates*, Volume IX, p. 105.

[17]*Ibid,* p. 123.

[18]*Ibid,* p. 547.

[19]*Ibid,* p. 177.